

Whangarei District Council Meeting Minutes

Date: Thursday, 3 August, 2023
Time: 9:00 a.m.
Location: Council Chamber
Te Iwitahi, 9 Rust Avenue
Whangārei

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka

Not in Attendance Cr Paul Yovich

Scribe C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apology / Kore Tae Mai

Cr Paul Yovich

Moved By Cr Phil Halse

Seconded By Cr Deborah Harding

That the apology be sustained.

Carried

4. Public Forum / Huihuinga-a-tangata

Dr Lawrie Brett – Fluoride Free New Zealand

Deb Fong – Costs of Fluoride in our water

Carolyn Bond – Fluoridation of public water

Mia Barton Boots – Fluoridation of public water – from a personal health perspective.

5. Confirmation of Minutes of Previous Meetings of the Whangarei District Council / Whakatau Meneti

5.1 Minutes Whangarei District Council meeting held on 22 June 2023

Moved By His Worship the Mayor

Seconded By Cr Gavin Benney

That the minutes of the Whangarei District Council meeting held on Thursday 22 June 2023, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

5.2 Minutes Whangarei District Council Meeting held on 29 June 2023

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the minutes of the Whangarei District Council meeting held on Thursday 29 June 2023, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. Decision Reports / Whakatau Rīpoata

6.1 Deferral of Stormwater Management Bylaw and Wastewater Bylaw reviews

Moved By Cr Carol Peters

Seconded By Cr Simon Reid

That Council defers the review, in accordance with clause 25(1)(b) of Schedule 1AA of the Local Government Act 2002, as amended by the Water Services Entities Act 2022, of:

1. The Stormwater Management Bylaw (Attachment 1); and
2. The Wastewater Bylaw (Attachment 2).

Carried

6.2 New Trade Waste Bylaw

Moved By Cr Ken Couper

Seconded By Cr Jayne Golightly

That Council:

1. Determines that the Trade Waste Bylaw 2023 included in Attachment 1:
 - a. is the most appropriate form of the Bylaw; and
 - b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990.
2. Revokes the Trade Waste Bylaw 2012 (Attachment 2) and replaces it with the Trade Waste Bylaw 2023 (Attachment 1) with effect from 4 August 2023.
3. Adopts the Trade Waste Control 2023 (Attachment 3) in accordance with clause 7.8 of the Trade Waste Bylaw 2023.
4. Delegates all its responsibilities, duties and powers under this Bylaw, to the Chief Executive, except for:
 - a. the power to set fees
 - b. the power to make a decision for which a Council resolution is required;
 - c. the power to hear and decide on any appeals.
5. Authorises the Chief Executive to make any minor edits or amendments to the Trade Waste Bylaw and Trade Waste Control to correct any spelling or typographical errors and/or to reflect decisions made by Council at this meeting.
6. Directs staff to prepare a memorandum to the new Water Services Entity outlining the cultural issues raised by tangata whenua that have not been resolved by the Trade Waste Bylaw and the necessary components to adequately address these issues.

Carried

6.3 Review of Designation for Emergency Management of Buildings

Moved By Cr Carol Peters

Seconded By Cr Marie Olsen

That the Council resolves pursuant to s133BG (1) of the Building Act 2004 that the designation put in place on 15 February 2023 is still needed for the emergency management of affected buildings.

Carried

6.4 Whangarei District Population Projections

Moved By Cr Phil Halse

Seconded By Cr Carol Peters

That the Council:

1. Adopt the high growth scenario for use in council planning.
2. Authorise the Chief Executive to make any necessary drafting, typographical or corrections to the final Whangarei District population projections report.

Carried

6.5 Event Development Fund Allocation

Moved By Cr Gavin Benney

Seconded By Cr Jayne Golightly

That the Council:

1. Approve the additional unbudgeted funding of \$57,000 to the Event Development Fund to support the International Women's Boxing and Whangarei Maritime Festival planned for the district in the 2023-2024 financial year.
2. Note the intended change in approach to the Christmas Programme of events.

Carried

6.6 Statement of Proposal – Transfer of the Independent Qualified Person's (IQP's) Register to Auckland Council

Moved By Cr Marie Olsen

Seconded By Cr Carol Peters

That the Council:

1. Adopts the statement of proposal which is subject to s.83 the Special Consultative Procedure Process under the Local Government Act 2002.
2. Resolves to seek public submissions on the proposal in accordance with the Special Consultative Procedure process.
3. Authorises the Chief Executive to make any necessary changes to the attached statement of proposal and finalise the document for consultation.

Carried

7. Information Reports / Ngā Pūrongo Kōrero

7.1 Minutes Whangarei District Council 22 September 2022 – Administrative error

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That Council notes the correction to the Minutes of the Meeting of the Whangarei District Council held 22 September 2022, as follows:

Item 6.2 - Airport Noise Management Committee Recommendations

5. *Confirm Council support in principle the relocation of NEST from Kensington Park to Whangarei District Airport.*

Carried

Item 1.10 was returned from public excluded to open meeting.

1.10 Future Development Strategy Governance Arrangement

Item 1.10 was distributed subsequent to the agenda being circulated but within the timeframes specified in LGOIMA.

Moved By His Worship the Mayor

Seconded By Cr Deborah Harding

That the Council;

1. Establishes the Whangārei Future Development Strategy Working Group with Terms of Reference outlined in Attachment 1 and comprised of:
 - Four (4) local government members comprised of:
 - Two (2) Whangarei District Council representatives to be appointed by Whangarei District Council.
 - Two (2) Northland Regional Council representative to be appointed by Northland Regional Council.
 - Four (4) tangata whenua members:
 - Two (2) to be nominated by the Māori caucus of Te Kārearea Strategic Partnership Committee to be appointed by Whangarei District Council.
 - Two (2) members who can represent Whangarei District, to be nominated by the Māori caucus of Te Taitokerau Maori and Council Working Party (TTMAC) and appointed by Northland Regional Council.
2. Approves the Terms of Reference for the Whangārei Future Development Strategy Working Group.
3. Appoints Councillors Ken Couper and Scott McKenzie to serve as the Whangarei District Council representatives on the Working Group.

4. Authorises the Chief Executive to formally invite Northland Regional Council to participate in the Future Development Strategy Working Group.
5. Notes that Whangarei District Council and Northland Regional Council will each need to formally adopt the Future Development Strategy.
6. Agrees that staff actively seek any available external funding for the Future Development Strategy / Urban Development Project.

Carried

Cr Olsen abstained from voting on Item 1.10.

Cr Reid requested his vote against Item 1.10 be recorded.

Extra ordinary Business

Subsequent to the agenda being circulated confidential Item 1.11 Inner City Development Further Terms was distributed separately but not within the timeframe specified in LGOIMA.

The report was not included in the agenda for the reason that negotiations were still ongoing at the time of the agenda closure.

Council are asked to consider this matter at today's meeting, to enable negotiations to continue without undue delay.

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That council consider Item 1.11 Inner City Development Further Terms, at this meeting.

Carried

8. Public Excluded Business / Rāhui Tangata

Moved By His Worship the Mayor

Seconded By Cr Phil Halse

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 22 June 2023	Good reason to withhold information	Section 48(1)(a)

1.2	Confidential Minutes Whangarei District Council 2 June 2023	exists under Section 7 Local Government Official Information and Meetings Act 1987	
1.3	Property Purchase		
1.4	Proposed Road and Land Acquisitions – KiwiRail and Marsden Point Rail Link		
1.5	Request to purchase Paper Road		
1.6	Land Purchase		
1.7	Trustee Appointment to Whangarei Quarry Gardens Trust		
1.8	Civic Honours Selection Committee Approval of Minutes and Recommendations 2023		
1.9	Litigation Update August 2023		
1.11	Inner City Development Further Terms		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	For the reasons as stated in the open minutes	
1.3	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) To prevent the disclosure or use of official information for improper gain or improper advantage	Section 7(2)(i) Section 7(2)(j)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.6	To enable Council to carry on without prejudice or	Section 7(2)(i)

	disadvantage negotiations (including commercial and industrial negotiations)	
1.7	To protect the privacy of natural persons, including that of a deceased person	Section 7(2)(a)
1.8	To protect the privacy of natural persons, including that of a deceased person	Section 7(2)(a)
1.9	To maintain legal professional privilege	Section 7(2)(g)
1.11	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(h) Section 7(2)(i)

Carried

A short break was taken from 10.38am to 10.48am.

9. Closure of Meeting / Te katinga o te Hui

His Worship closed the meeting at 11.40am with a karakia/prayer.

Confirmed this 24th day of August 2023

His Worship the Mayor Vince Cocurullo (Chairperson)